

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

Case No. PCE 2006-0002

ADMONISHMENT AND STIPULATION

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF JANICE SHAFFER, LPC, LICENSE NO. 1892,**

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and Janice Shaffer ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Number PCE 2006-0002. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. PL and Respondent were colleagues. In August 1999 through March 2000, Respondent sublet office space from PL.
 - b. On July 31, 2000, Respondent entered into a therapist-client relationship with PL.
 - c. Respondent did not provide a disclosure statement to PL at any time during the course of treatment.
 - d. Respondent saw PL a total of fourteen sessions between July 31, 2000 and November 28, 2000.

- e. PL did not disclose to Respondent that she had a history of anxiety at the beginning of the therapeutic relationship. During the course of the therapeutic relationship, Respondent became aware that PL had suffered from anxiety in the past.
- f. Respondent used Eye Movement and Desensitization and Reprocessing ("EMDR") during sessions with PL.
- g. Respondent did not document a thorough history prior to using EMDR with PL.
- h. On December 27, 2000, PL ended the therapist-client relationship and informed Respondent that she did not want to continue with EMDR or counseling, and she disclosed that she treating with another therapist.
- i. Respondent entered into a therapist-client relationship with PL's daughter JJ from approximately October 27, 2000 through December 13, 2000.
- j. The sessions started at the suggestion of PL.
- k. Respondent did not provide a disclosure statement to JJ. Respondent used EMDR during sessions with JJ.
- l. Respondent requested and received merchandise from PL's gallery in lieu of payment for a portion of her treatment fees.
- m. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §§ 12-43-222(1)(g) and (p), C.R.S.

5. By virtue of the admissions in paragraph 4, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

6. The Board hereby admonishes Respondent for her conduct described in paragraph 4 above.

PROBATION

7. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for three (3) years commencing from the date this Order is fully executed or the date Respondent's clinical supervisor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a professional counselor in Colorado, is being supervised by a clinical supervisor, and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

CLINICAL SUPERVISION

11. During the term of probation, Respondent's practice shall be supervised by a clinical supervisor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed clinical supervisors for the Board's approval. Respondent shall include for consideration the current curriculum vita and a commitment letter from each proposed clinical supervisor stating that he/she has read this Order and understands and agrees to perform the obligations set forth herein. The clinical supervisor shall meet the following criteria:

a. The clinical supervisor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.

b. It is recommended that the clinical supervisor have a minimum of five years experience and has not been subject to professional discipline.

12. Respondent must have a clinical supervisor approved by the Board within two months after this Order is fully executed. Respondent may propose a licensed individual already providing supervision for Respondent to fulfill this requirement. If this condition is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a clinical supervisor is approved. The Board

shall act expeditiously with regard to Respondent's submission of the clinical supervisor.

13. After the Board's written approval of the clinical supervisor, the Board will provide the clinical supervisor with a copy of the Order, the complaint and responsive documents, and the investigative report in this matter. Thereafter, Respondent and the clinical supervisor shall enter into a written contract for supervision. The clinical supervisor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the clinical supervisor understands the duties and responsibilities s/he is undertaking as Respondent's clinical supervisor. The clinical supervisor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the clinical supervisor. This written notification may be provided in a mandatory disclosure statement.

14. The clinical supervisor shall conduct a practice evaluation during the first month of clinical supervision. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first clinical supervision report shall include the findings of the practice evaluation.

15. Should the Board determine from the clinical supervisor's evaluation that Respondent cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that she is qualified, competent, and safe to fully practice, Respondent may resume full practice.

16. The clinical supervision shall consist of individual, in-person (face-to-face) sessions that occur once every two weeks for at least one hour, or such longer time as the clinical supervisor deems necessary. During the clinical supervision sessions, Respondent and her clinical supervisor must review and discuss each of Respondent's active cases at least once every month in order to allow the clinical supervisor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

17. The clinical supervisor shall submit written reports to the Board on the fifth day of the month following the first full month of clinical supervision for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the clinical supervisor shall submit his/her reports by the fifth day of every third month (i.e., on a quarterly basis) until the clinical supervision is completed.

18. If at any time the Board has questions or concerns regarding the supervision, the clinical supervisor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the clinical supervisor 30 days notice prior to requiring the clinical supervisor's attendance at the Board meeting.

19. If at any time the clinical supervisor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the clinical supervisor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. The Board shall review all information presented and take action consistent with § 12-43-224, C.R.S.

20. Respondent shall make every effort to ensure that all reports by the clinical supervisor are complete and timely submitted to the Board. If, in the Board's judgment, the clinical supervisor fails to perform the function specified by this Order, the Board may require that a new clinical supervisor assume the responsibilities herein. If for any reason the clinical supervisor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed clinical supervisor to the Board within 30 days.

21. Respondent or the clinical supervisor may terminate the supervision relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved clinical supervisor, who shall conduct her/his supervision and report to the Board in accordance with this Order.

EARLY TERMINATION

22. After successful completion of no less than two years of clinical supervision and probation, and upon recommendation of the clinical supervisor, Respondent may petition the Board for early termination of probation. The parties agree that the Board's decision regarding such a petition shall be made at the sole discretion of the Board. Respondent is hereby waiving the right to appeal the Board's decision on this issue.

CONTINUING EDUCATION

23. During the period of probation, Respondent must successfully complete at least twenty hours each year of Board-approved professional continuing education courses in the areas of EMDR, therapist boundary/dual relationship issues, or other legal/ethical issues specifically related to the practice of professional counseling in Colorado. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

PRACTICE RESTRICTION

24. Respondent hereby agrees not to engage in bartering with a client at any after the effective date of this Order. Respondent's disclosure statement shall advise clients that she will not accept gifts, services or merchandise in lieu of payment for therapy.

TERMS AND CONDITIONS

25. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

26. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is supervised in accordance with this Order.

27. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, clinical supervision, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

28. During the pendency of this Order, Respondent agrees that she will provide permission to and allow her clinical supervisor, therapy evaluator, or therapist to provide records and information obtained in the normal course of clinical supervision, therapy evaluation, or treatment to the Board if the clinical supervisor, therapy evaluator, or therapist determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care. As part of this Order, Respondent explicitly waives her right to maintain confidentiality of records or information provided to the clinical supervisor, therapy evaluator, or therapist in the normal course of clinical supervision, therapy evaluation, or treatment if the clinical supervisor, therapy evaluator, or therapist determines that she is not practicing

professional counseling in accordance with generally accepted standards of practice or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care.

29. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

30. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

31. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

32. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

33. Respondent acknowledges and agrees that any material violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

34. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

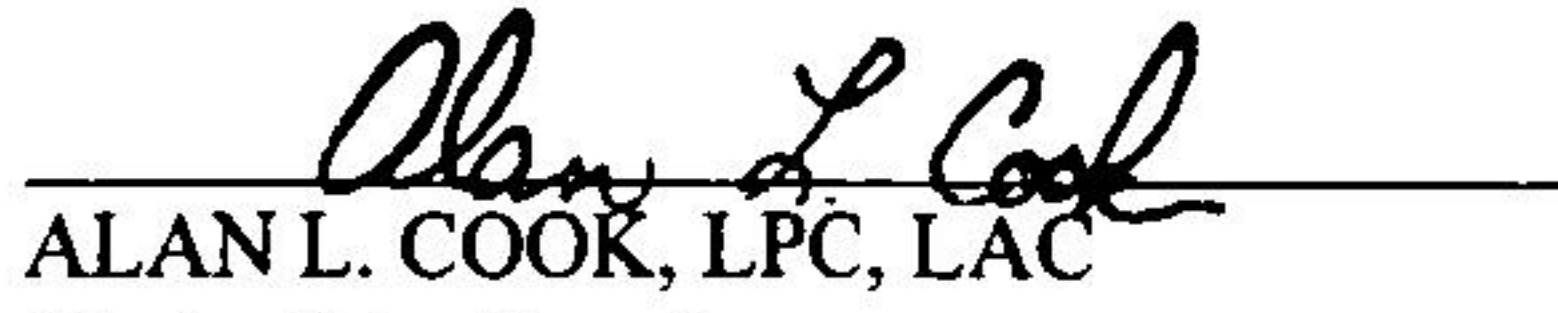
35. This Order shall become effective when accepted and signed on behalf of the Board.

36. This Order shall be a public record in the custody of the Board.

RESPONDENT

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**

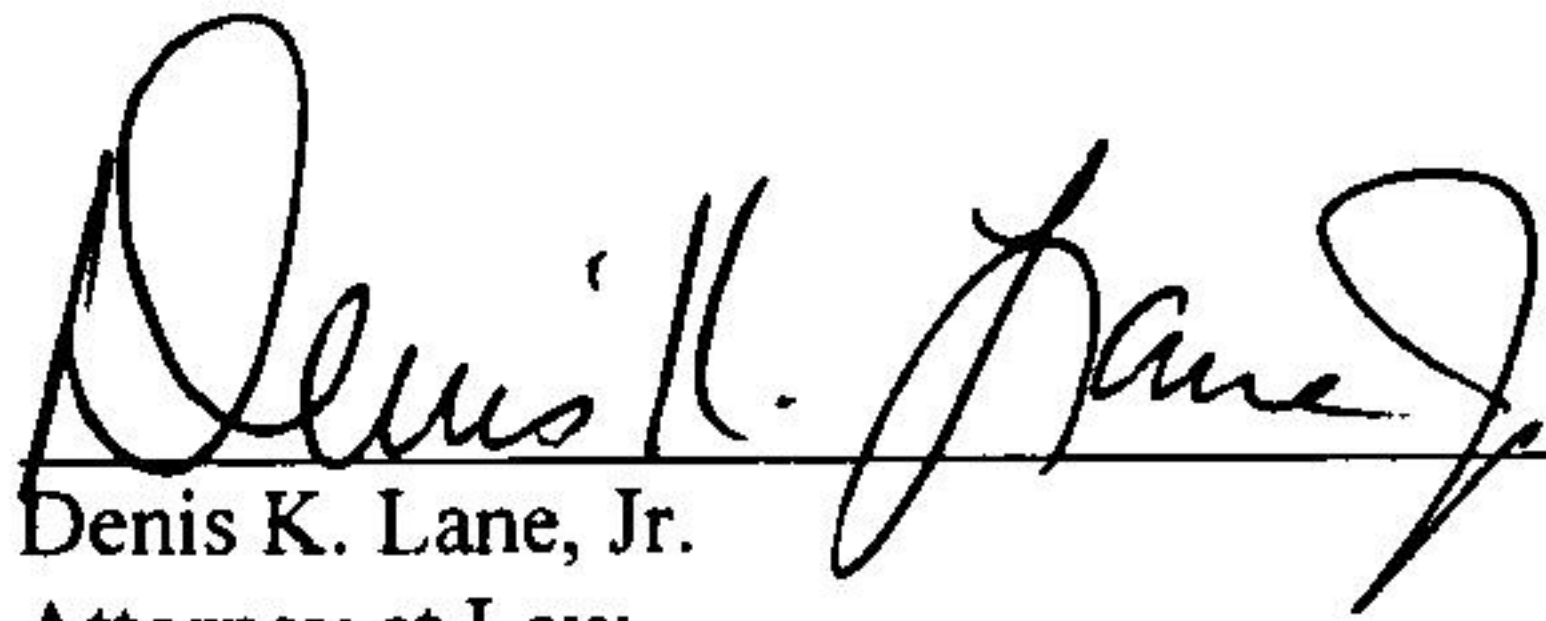

JANICE SHAFFER, LPC, #1892


ALAN L. COOK, LPC, LAC
Chair of the Board

Effective Date: This 28th day of
November 2006.

APPROVED AS TO FORM:

FOR THE RESPONDENT


Denis K. Lane, Jr.
Attorney at Law

Attorney for Respondent
Janice Shaffer

P.O. Box 6476
Colorado Springs, CO 80934-6476
Telephone: (719) 636-1017
FAX: (719) 635-4571
E-mail: dklaneatty@qwest.net

FOR THE BOARD


Ilene Wolf Moore
Assistant Attorney General
Business and Licensing Section

Attorneys for State Board of Licensed
Professional Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, CO 80203
Telephone: (303) 866- 5275
FAX: (303) 866-5395
E-mail: ilene.wolfmoore@state.co.us